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SECTION B - SUPPLIES OR SERVICES AND PRICE/COSTS

B.1 PRICE/COST SCHEDULE

ITEM INFORMATION

ITEM NUMBER	DESCRIPTION OF SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0001	Web Harvesting Services Contract Period: Base POP Begin: 06-01-2026 POP End: 05-31-2031	5.00	YR	_____	_____
				_____	_____
				GRAND TOTAL	_____

B.2 LC52.212-2 SUPPLEMENTAL LICENSE AGREEMENTS (JUL 2017)

The Library does not agree to licensing agreements or any other provisions that attempt to: (1) replace an order as the governing contract; (2) establish new or supplemental payment terms; or, (3) affect the legal relationships of the parties. Notwithstanding any clauses in this contract or order, or the contractual vehicles against which the order is placed, that establish order of precedence, the rights and obligations provided by this contract or order take precedence over the rights and obligations set forth in any licensing agreements provided to the Library.

The Library's incorporation of a licensing agreement into this contract or order excludes all terms of the licensing agreement that contravene, modify or conflict with the terms of [36 C.F.R. 701.7](https://www.ecfr.gov/cgi-bin/text-idx?SID=87a865ce2bd109313a951a3d477895d8&mc=true&node=se36.3.701_17&rgn=div8) available at: https://www.ecfr.gov/cgi-bin/text-idx?SID=87a865ce2bd109313a951a3d477895d8&mc=true&node=se36.3.701_17&rgn=div8.

(End of Clause)

B.3 LC52.216-3 CONTRACT TYPE (JUN 2016)

This is an Indefinite-Delivery, Indefinite-Quantity (IDIQ) contract with firm-fixed-price Task Orders.

(End of Clause)

B.4. SUPPLIES OR SERVICES AND PRICING

B.4.1 Minimum and Maximum Amounts

Minimum: \$300,000.00

Maximum: \$15,000,000.00

The Library of Congress will order the specified minimum amount under this IDIQ contract. Specific requirements will be identified in individual task orders issued under this contract. During the life of this contract, the Government may order any combination of services established in Section C for any quantity. The cumulative value of all task orders issued under this IDIQ contract shall not exceed the maximum amount specified under this IDIQ for the life of the contract. The maximum amount applies to this contract and the total of all orders placed under this contract. The Government is under no obligation to place further orders after the initial minimum guarantee established at \$300,000.00.

B.4.2 Ordering Years and Unit Prices

This IDIQ contract is established with Ordering Years instead of Option Years and, as such, annual exercising of contract options is not required. The Ordering Years for this Contract are as follows:

All Supplies and Services

Ordering Year I:	06/01/2026 – 05/31/2027
Ordering Year II:	06/01/2027 – 05/31/2028
Ordering Year III:	06/01/2028 – 05/31/2029
Ordering Year IV:	06/01/2029 – 05/31/2030
Ordering Year V:	06/01/2030 – 05/31/2031

Unit prices for all deliverables shall be established, by Ordering Year, in *Attachment J4 – Pricing Schedule*. Order prices shall correspond with the Ordering Year prices that are active at the start of the period of performance, despite which Ordering Year most of the work takes place in. No mixed-year pricing will be utilized. For example, an order with a period of performance start date of 08/10/2026 which ends 08/09/2027 would be priced entirely using Ordering Year I prices even though a portion of the order overlaps with Ordering Year II.

SECTION C - DESCRIPTION/SPECIFICATIONS/STATEMENT OF WORK

C. STATEMENT OF WORK

C.1. OVERVIEW / BACKGROUND

The Library of Congress (Library) requires contract support to enable the systematic harvesting of content at-scale from the web, based on instructions from Library staff, to provide temporary access to the content and required crawl reports for quality review, and to enable transfer of content to the Library for preservation and public access.

Since 2000, the Library has collected and preserved harvested web content related to a variety of thematic web and event-based topics, based on Library [collecting policies](#). The web archives are an important component of the Library's born digital collections. The harvesting of selected websites for the Library's collections supports the Library's [Strategic Goal](#) to build and enrich Library collections and content to serve Congress and America's communities.

The Library uses an in-house curatorial tool called Digiboard to manage the web archiving program, including to export seed lists to deliver to a Contractor for crawling. Selection of materials for this program is conducted by Library staff who are subject experts. The Library Web Archiving Program staff are the technical liaisons between the Contractor performing harvesting services and Library staff engaged in selection and management of the content after it's been harvested and delivered to the Library.

Library crawls typically include a large quantity of seed URLs per crawl. Due to scale, the Library's Web Archiving program and approach to collecting have historically amounted to a large-scale crawling effort, organizing selection around thematic collections while crawling in large "buckets" based on desired frequency of harvest. The number of distinct seed URLs in each 'frequency bucket' range from hundreds to thousands per seed list. Seeds are scheduled for crawling at regular intervals or "frequency", which may include weekly, monthly, and quarterly; however, past iterations have included twice-daily and yearly.

Content targeted for archiving may include entire domains, specific subdomains or paths, portions of websites focused on a particular topic, or single documents (such as PDFs). Content in the web archives is published in the United States and in multitude of other countries, with varying languages. The Library's web archives follow a permissions-based model; careful curation occurs by Library staff, and the Library creates scoping instructions at the seed-level to ensure crawled content remains in scope. The Library previously acquired public social media pages as seed URLs when nominated by Recommending Officers at the Library, or as scopes when linked from home page of the targeted domain. We discontinued this practice in 2021, around the time of broad implementation of log-in walls by social media platforms, but continue to monitor developments around social media archiving.

Contractors performing this work to-date have utilized multiple crawl technologies to support web harvest operations. Most commonly, the program has benefited from a large, standard (e.g. Heritrix) crawl, and a smaller browser-based crawl. While the percentage of this split has varied, a rough estimate of the split assuming around 16,500 seed URLs across all crawls is 70/30 standard to browser-based. A smaller sub-set of websites in the 30 percent designated to browser-based crawling may benefit from more customized crawling, however due to the construct of past programs this has not been feasible.

See the Library's Rights and Access policy at this link: <https://www.loc.gov/collections/american-music-industry-web-archive/about-this-collection/rights-and-access/>

C.2. SCOPE

While the Library's Web Archiving Program manages many aspects of the web archiving workflow for adding to Library of Congress collections, web harvesting services are required for capture of web content at scale. Harvested content shall be transferred to the Library for preservation and access by Library staff.

C.3. REQUIREMENTS

This Statement of Work (SOW) contains several weblinks to Library and industry resources. The Library may alert the contractor when a change is made to the link and/or its contents, but it is the contractor's responsibility to monitor these links and the information and standards provided therein. The contractor shall contact the Library for an updated link if one provided in this SOW becomes inaccessible or obsolete and its replacement is not immediately apparent.

C.3.1 GENERAL CRAWL REQUIREMENTS

3.1.1 The Contractor must perform crawls to capture content identified by the Library according to the Library's specifications. For each crawl, the Library will provide the Contractor with formatted seed lists which identify the seed URLs to be captured, scoping instructions, robots.txt instructions, and other rules for that crawl. The Library reserves the right to make minor revisions to the seed list up to 24 hours in advance of the scheduled crawl.

3.1.2 The Contractor must perform crawls according to crawl schedules specified by the Library in accordance with task orders, which shall be issued under this contract. Each task order will establish the crawl schedule and crawl frequencies at the start of each task. Crawls may have varying start dates, frequencies, durations, and data limits. The Library will provide seed lists for the Contractor. Seed lists are the property of the Library and are solely for the Library's collection purposes.

3.1.3 The Contractor must complete crawls within a timeframe, which shall be defined in each order, sufficient to maintain the specified frequency, while employing politeness factors.

3.1.4 The Contractor must allow for robots.txt exclusions either to be ignored or to be respected for seeds within a crawl.

3.1.5 The Contractor must allow for deduplication of content against baseline crawls, storing only data that has been modified or newly discovered when compared with data previously captured for and stored on behalf of the Library.

3.1.6 The Contractor must enable as comprehensive of a capture as possible given current tools and stated capabilities of the Contractor. The Contractor must enable capture of a variety of digital objects from the web required to render the identified seeds as they were at the time of capture. Digital objects may include, but are not limited to, HTML, images, PDFs, multimedia including but not limited to audio and video files, any embedded content, and other essential components necessary for accurately replicating a webpage. When playing back the archived content, the Contractor's priority shall be to recreate an experience that mirrors what a user would have encountered when visiting the live site at the specific time of capture.

3.1.7 The Contractor shall provide flexible approaches to enable the capture content at the level of depth and breadth and per scoping instructions for each seed, including highly complex sites with multiple paths and many links from the primary seed URL. Novel approaches to organizing the crawls and strategies which employ multiple crawlers are welcome to maximize successful capture of targeted content.

3.1.8 The contractor must crawl websites politely with all employed crawlers, in order to minimize server impact, as described in *Attachment J5 – Web-Archiving-FAQ*. Such ‘politeness’ settings are explained in Heritrix, as an example (see *Attachment J6 - Configuring Crawl Jobs - Heritrix 3*). Politeness settings will be reviewed and agreed upon at the start of the contract but may be reassessed if need arises.

3.1.9 The Contractor must enable strategies for crawling seed lists, which may include thousands of seed URLs and scoping instructions, in such a way as to minimize server impact on websites, web hosts and resources being harvested, including in cases where different sections of the same website may be represented as numerous independent seeds in the same crawl. Strategies shall include, but are not limited to:

- Increase politeness settings on a seed or domain-specific basis
- Custom regex to exclude problematic URL patterns, such as infinitely repeating directories or self-generating 404s
- Site specific crawler configuration settings (e.g. sheet rules like queue assignments in Heritrix in *Attachment J6*)

3.1.10 The Contractor shall utilize one or more types of web crawlers to accomplish at-scale harvest. Additional crawlers may be utilized to accomplish high-fidelity capture of all or part of each seed list.

3.1.10.1 Additional crawlers, if browser-based, must include rate-limiting or other polite crawling capabilities (see 3.1.3 and 3.1.8).

3.1.10.2 The Contractor shall suggest strategies to accomplish harvest of all or sub-sets of seed lists using multiple crawl technologies, e.g. splitting seed lists into smaller or single-seed crawls. The Contractor should provide sustainable means of routing and tracking seed URLs designated for such crawls. Contractor must account for details in the Quality Control Plan (see 4.2).

3.1.11 The Library recognizes that the web is complex and constantly evolving, and approaches to crawling at-scale are ever-changing. To allow the Library to best anticipate quality of results of the crawls, the Contractor must inform the Library of significant changes to how the crawler is able to capture identified content, or crawling approaches that affects (both positively and negatively) the quality of results or ability to capture content identified by the Library. Additionally, the Contractor shall test and use of new and improved tools to capture content are encouraged, for instance when harvesting challenging content. The Contractor must notify the Library prior to testing and implementation of any new crawling tools used to capture content for the Library. The Contractor must provide technical specifications and descriptive information (such as an overview of what it does, how it works, and how it differs from the current in-use tools) about the new proposed tool and the Library will review the proposal and provide approval or feedback in 10 business days. The Library reserves the right to reject a proposed tool

3.1.12 The Contractor must be flexible in scoping and capping different types of content to best capture seeds identified by the Library for harvesting; sometimes this includes making changes to running crawls. Changes may be made at the direction of the Library or if the contractor needs to stop and adjust a running crawl for reasons that may include interruption of service, removal of a URL from the crawl queue, or other server impacts on the live site. Per the below 3.1.15, if a change or pause is initiated by the contractor, the contractor must inform the Library within 24 hours of issues, interruptions, and resolutions.

3.1.13 The Contractor must capture password-protected content when provided with credentials by the Library.

3.1.14 The Contractor must run additional crawls, if necessary, to harvest materials missed during a crawl. Such crawls shall occur only as directed by the Library on a limited basis.

3.1.15 The Contractor must monitor each crawl and, within 24 hours, notify the Library and take action to resolve any issues related to crawler behavior or interruption of service.

3.1.16 The Contractor must package captured content in valid WARC (Web ARChive) files (see format in *Attachment J7 – ISO 28500_2017 WARC file format*) for transfer to the Library, accompanied by valid, 11-field CDX indexes for all resources in the WARC files.

3.1.17 The Contractor must use servers physically located in the United States for all crawling (i.e., capture of content) that occurs under this contract. If the Contractor provides cloud crawling services, the Contractor must utilize U.S. based data centers. There is no restriction on server location for other services provided under this contract.

3.1.18 The Contractor shall provide a web-based communication tool and mechanism (such as a ticketing system), available via a secure login, for exchange of seed lists between the Library and the Contractor, reporting of issues, quality assurance inquiries and responses, tracking transfer of content, and other general communications.

3.1.19 The Contractor must stay up to date with requirements in the larger field of bots and crawlers and observe practices that will enable them to remain ‘verified’ or off ‘bad bot’ lists. The Contractor should routinely provide data on whether these conditions are met and the extent of such ‘bot protection’ or anti-bot blocking’s impact on harvest quality. This is a complex, new and evolving field which, when encountered, may significantly detract from crawl success.

3.1.20 The Contractor must provide valid user agents and static IP addresses for the crawlers at the start of each task order.

C.3.2 ACCESS FOR LIBRARY QUALITY REVIEW

3.2.1 The Contractor must provide an access tool on a Contractor-provided system by which Library staff can review the results of the crawls performed by the Contractor prior to transfer of the content to the Library. The Contractor must restrict access to Library staff and the Contractor only. Access must not be available to the public or Library users not on the list provided by the COR (see 3.2.3.1).

3.2.2 The Contractor must make the results of each crawl accessible to the Library within five (5) business days of completion via the Contractor-provided access tool.

3.2.3 Access Tool Requirements

3.2.3.1 The Contractor’s access tool must allow for up to 50 simultaneous sessions (restricted by IP address to Library premises only or by password protection) to use the access interface. The Library will provide a list of staff users who are allowed to have access to the vendor’s access tool.

3.2.3.2 The access tool must replay archived content and support search, retrieval, and display by URL.

3.2.3.3. The access tool must limit the display of content to harvested content (i.e., preventing content from the “live” web from displaying), and must clearly distinguish between archived and live content.

3.2.4 The Contractor must ensure that all content captured is fully functional within the accepted limitations when displayed via the access tools.

3.2.5 The Contractor must provide an action plan to monitor, report to the Library, and remedy breaks in access service. When it is within Contractor’s ability to schedule maintenance outages, outages must be scheduled outside of Library business hours (6:30am – 6:00pm EST Monday-Friday) if possible, and Library staff must be notified 24 hours in advance of any planned outages.

3.2.5 The Contractor must provide the most current, stable version of its access tool to the Library for the Library’s review of crawled content.

C.3.3 REPORTS

3.3.1 REPORTS REQUIREMENTS FOR EACH CRAWL

For each crawl, the Contractor must provide the following reports within 5 days of the completion of each crawl. The Contractor must supply sample crawl reports and file-naming conventions at the start of the first task order under this IDIQ and confirm format and data elements. The Contractor must notify the Library of any format changes to the crawl reports before the Contractor implements changes.

In the event that multiple types of crawlers are used, the Contractor must supply sample reports from each type of crawler at the start of the first task order under this IDIQ. The Contractor must ensure that the data in all reports are complete and accurate. Reports from distinct crawl technologies must be in parity with each other, in terms of formatting and data elements

Reports must be viewable in the vendor's system to enable quality review by the Library, and transferred to the Library (see C.5):

3.3.1.1 Contractor shall provide quality assurance results as specified in the Quality Assurance Plan (See C.4.)

3.3.1.2. Contractor shall provide statistical information about the crawl.

(See *Attachment J.1 - Technical Environment* section for details on how the Library uses crawl report data in its inspection, and Library QA processes.)

3.3.1.2.1 The Contractor must provide reports to the Library in ASCII text and xml format.

3.3.1.2.2 The Contractor's reports must contain the following information (some reports may be generated by the crawler, some reports are custom reports requested for quality control purposes):

- A record of what was crawled, with a list of seeds crawled and a list of hosts crawled
- A record of the breadth and depth of the crawl, i.e.
 - how much from each seed list was captured
 - number of resources and size per host
 - number of resources still left in queue at the end of the crawl
 - amount of data archived per host and per seed
 - amount of new data vs. duplicated data per host and per seed
 - lists of URLs not crawled because they were out of scope
 - number of successfully crawled seeds
 - number of redirected seeds
 - number of seeds not crawled (if any)
 - number of seeds queued (if any)
 - number of seeds blocked (if any)
- A copy of the seed list provided by the Library to the Contractor for the crawl.
- All crawler specifications, patches, scripts, and configuration files (e.g., crawler beans, order file, special rules for the crawler) used for generating the crawl.
- A report of the total number of bytes harvested per seed URL in that crawl, in rank order
- A report of the total depth the crawler reached from each seed URL in that crawl, in rank order
- A list of http response codes and status (e.g. 'crawled' or 'not crawled') and redirects for each seed crawled.
- A report of crawler traps encountered by the crawler during routine crawls.

- A report on bot-blocks identified at the seed and resource level, including lists of domains routinely blocking the crawler(s), the frequency of blocks in the context of routine crawls, and the source of repeat blocks.

3.3.1.3. The Contractor shall provide all available crawl logs as generated by the crawler(s).

3.3.2 The Contractor must provide reports on any errors encountered during integrity monitoring for hosted data as described in Section 3.4, including checksum errors and operational status, and any remedies taken.

C.3.3.3 Library Ownership of Reports

The Library will own the rights to all reports created under this contract. The contractor agrees not to use any data that is not available in the public domain, nor information included in reports for the Library, with generative AI nor in its work with any other individual not authorized to perform work under this contract.

C.3.4 VENDOR HOSTING AND STORAGE INFRASTRUCTURE

3.4.1. The Contractor must maintain a reliable and secure data storage and maintenance infrastructure capable of storing all web content harvested within the task orders issued under this contract incorporating the following minimum capabilities as outlined below:

3.4.1.1. The Contractor must store and maintain two copies of web content harvested under the scope of each task order: one for access by Library staff (see 3.2), and one for backup to ensure that data is not lost between the time of capture and the time it is transferred to the Library.

3.4.1.2. The Contractor must ensure that the infrastructure for crawling, storing, and providing access to content provides documented physical security, electronic security, and operational practices that represent standard industry practices for commercial hosting providers.

3.4.1.3. The Contractor must perform some file-level integrity monitoring for data hosted under the terms of this contract.

3.4.2. The Contractor shall perform fixity checks on the content when bagged and prior to transmission to the library.

3.4.2.1. The Contractor must monitor the operational status of the environment for providing access to Library content and notify the Library of any downtime.

3.4.3 Duration of Content Storage

The Contractor is required to maintain and store the access and backup copies, and any crawl reports, until the task order is complete, and all content has been transferred to the Library per section 3.5.

C.3.5 TRANSFER OF CONTENT TO THE LIBRARY

3.5.1 The Contractor must enable transfer within 5 days of harvested content to the Library after quality review and acceptance by the Library.

3.5.2 The Contractor must provide a method of verifying complete transfers of content. The Library's preferred method for transfer is the BagIt File Packaging Format specification, a hierarchical file packaging format. See <https://datatracker.ietf.org/doc/html/rfc8493> for information.

3.5.2.1 For content delivered in BagIt structure, no single bag should exceed 1 TB. Recommended size for a BagIt bag is 250-500 GB in total (e.g., 250-500 1-GB WARC files per bag)

3.5.3 The Library's standard for a WARC file target size is ~1 GB.

3.5.4 The Library will provide one cloud storage space (e.g. S3 bucket) for the Contractor to deliver packaged content in BagIt format. The Contractor shall deliver that content over any secure internet connection, including Internet 2, using https protocols.

3.5.5. If the Contractor's method of transfer is using a network, the following Network Transfer Requirements apply:

3.5.5.1 The Contractor must maintain machines and networks operational for transfer, as described above.

3.5.5.2 The Contractor must address and rectify transfer failures falling within its machine(s) and/or network sphere. A transfer failure is a factor that causes transfer of currently requested content to fail.

3.5.5.3 The Contractor must acknowledge a transfer failure query from the Library within 24 hours.

3.5.5.4 If the transfer failure is determined to fall within the Contractor's machine(s) and/or network sphere, the Contractor must rectify the failure within five (5) business days.

3.5.5.5 If rectifying the failure takes more than five (5) business days, the total time required to rectify it must be counted as downtime (see 3.5.4.1.6).

3.5.5.6 The Contractor must ensure system availability for transfer of harvested content to the Library during the Library's business hours in Eastern time. In no case must Contractor's annual downtime exceed 20 business days or portions thereof.

3.5.5.7 In the case of unavoidable scheduled downtime, the Contractor must give the Library 24 hours' notice.

C.4. CONTRACT PERFORMANCE

C.4.1. SCHEDULE OF EVENTS/DELIVERABLES

Each task order shall contain a schedule of deliverables. Each task order will identify the specific deliverables, deadlines and milestones for the work required; including number of maximum terabytes ordered; type and frequency of crawls and number of crawls; estimated number of seeds per crawl; length of crawls and any data caps; and other specifications based on the specific order. The Contractor shall deliver all reports and deliverables to the COR (see Section 6.2 for specific contact information.). Unless otherwise identified at the task order level, the contractor shall invoice monthly for the exact number of terabytes of data delivered, inspected, and fully accepted in writing by the COR.

Deliverables	Due Date
Kick-off Meeting	Within 10 days after contract award
Final Quality Control Plan	Within 30 days after contract award
Reports described under 3.3.1	Within 5 days of the completion of each crawl
Content Available for Inspection by the Library (See 3.2)	Within 5 days of the completion of each crawl
Content Available for Transfer to the Library via (See 3.5)	Within 5 days of acceptance of each crawl

C.4.2. QUALITY CONTROL

The Contractor shall develop and maintain an effective quality control program (QCP) to ensure services are performed in accordance with this contract. The Contractor shall develop and implement procedures to identify, prevent, and ensure non-recurrence of defective services and to ensure that requested content has been harvested. The plan should accommodate robust procedures to identify, track and resolve issues in the event of repeated failure to harvest nominated content.

The Contractor's quality control program is the means by which it assures itself that its work complies with the requirement of the contract. The QCP should be delivered within 30 days after the contract award to the COR. The plan must list the contents of the quality assurance report(s) that the Contractor proposes to provide for each completed crawl and steps taken to ensure quality.

In the creation of a QCP, the Contractor must consider how the plan shall address the following questions:

- What are the quality objectives or goals for this contract?
- What are the processes and procedures that will be employed to control quality of the products and services delivered under the contract?
- What are the roles and responsibilities for both the Contractor and the Library about these QC processes and procedures?
- What are the quality standards that will be enforced for the contract?
- What are the quality measures or metrics that will be used to demonstrate that the quality standards have been met or exceeded?
- How will monitoring and inspection be performed for the contract?
- How will quality failures be prevented?
- How will the Contractor ensure that remediated failures do not recur?
- How will the Contractor identify ways to improve the efficiency or effectiveness of its services?
- How will the Contractor identify and mitigate risks to quality performance?
- How will the Contractor and the Library collaborate to resolve disputes about quality?

After acceptance of the quality control plan the Contractor shall receive the contracting officer's acceptance in writing of any proposed change to its QC system.

C.5. PERSONNEL QUALIFICATIONS

C.5.1. KEY PERSONNEL

The following positions are considered key personnel:

Program Manager/Alternate Program Manager: The Contractor shall provide a program manager who shall be responsible for the performance of the work. The name of this person and an alternate who shall act for the Contractor when the manager is absent shall be designated in writing to the contracting officer. The program manager or alternate shall have full authority to act for the Contractor on all contract matters relating to daily operation of this contract. The program manager or alternate shall be available between 9:00 a.m. to 5:30p.m. Monday thru Friday except Federal holidays or when the government facility is closed for administrative reasons. The Program Manager must have at least 5 years relevant experience managing projects or programs like the work described in this SOW.

Crawl Engineer: The Contractor shall provide a crawl engineer who is responsible for the management of and reporting on the harvesting activities. The crawl engineer must have at least five years relevant experience managing web harvesting crawls.

Quality Assurance Lead: The Contractor shall provide a quality assurance lead who is responsible for ensuring that the QAP is followed by any Contractor staff. The Quality Assurance Lead must have at least 2 years relevant experience performing quality assurance on web archives.

C.5.2 DELETION OF CAPTURED CONTENT

At the end of each task order, upon confirmation from the Library that all copies of captured content and crawl logs and reports have been successfully transferred to the Library, *the Contractor must delete all copies of captured content stored by the Contractor.*

C.6. PHASE IN /PHASE OUT PERIOD.

To minimize any decreases in productivity and to prevent possible negative impacts on additional services, the Contractor must have personnel on board, during the thirty (30) day phase in/phase out periods. During the phase in period, the Contractor must become familiar with performance requirements in order to commence full performance of services on the contract start date.

(End of Performance Work Statement / Statement of Work)

SECTION F - DELIVERIES OR PERFORMANCE

F.1 LC52.215-5 PLACE AND PERIOD OF PERFORMANCE (JAN 2019)

Place of Performance: The place of performance shall be the contractor's own facilities.

The overall period of performance shall be as stated in section B.

The contractor is responsible for determining its hours of operation in fulfilling the requirements of this contract. The Library's standard operating hours for this requirement are 9:30 AM through 5:30 PM eastern time, Monday through Friday, excluding Federal holidays. The contractor shall coordinate with the COR for any work to be conducted at Library facilities or any access to digital Library environments.

(End of Clause)

SECTION G - CONTRACT ADMINISTRATION DATA

G.1 LC52.201-3 CONTRACT ADMINISTRATION (AUG 2015)

This contract will be administered by:

Library Contracting Officer: Jennifer Zwahlen

Phone: 202-707-0925

Email: jzwa@loc.gov

Library Contract Specialist: Colleen Daly

Phone: 202-707-0386

Email: cdaly@loc.gov

Library Contracting Officer Representative: TBD on award

Phone: TBD on award

Email: TBD on award

Contractor Contract Administrator: TBD on award

Phone: TBD on award

Email: TBD on award

G.2 LC52.232-1 LIBRARY OF CONGRESS INVOICE INSTRUCTIONS (DEC 2022)

The Contractor must prepare and submit invoices electronically to: <https://www.ipp.gov>. The Contractor may submit payment requests using other than electronic means only when alternate procedures are authorized by the contracting officer in writing. Assistance is available via the IPP Help Desk via email at: ippcustomersupport@fiscal.treasury.gov or by commercial telephone at (866) 973-3131. Invoices shall contain the information required in [FAR 52.212-4, paragraph \(g\)](#).

(End of Clause)

G.3 LC52.232-2 SCHEDULE OF PAYMENTS (JUN 2015)

Firm fixed price deliverable quantities will be identified at the Task Order level. The contractor must submit invoices for payment upon delivery of the successful performance of the events identified in each Task Order pursuant to the technical requirements outlined in Section C in this contract and any additional requirements included in each discrete Task Order.

(End of Clause)

SECTION H - SPECIAL CONTRACT REQUIREMENTS

H.1 Use of Generative Artificial Intelligence (AI)

The contractor shall not use generative AI (including, but not limited to ChatGPT, BARD, DALL-E, MidJourney, or Stable Diffusion) to create or produce any deliverables under this contract without specific written authorization from the Contracting Officer. Generative AI systems and tools are those which produce synthetic text, images, code, video, and music in response to user prompts, and include, but are not limited to, ChatGPT, BARD, DALL-E, MidJourney, and Stable Diffusion). For purposes of these requirements, generative AI does not include the use of those AI-enhanced word processing, email, or search tools that are already widely incorporated in day-to-day life such as AI tools embedded in image editing applications or code incorporated into commercial off the shelf products (COTS).

Unless specifically authorized in writing by the Contracting Officer, the Contractor shall not use Library furnished data provided under this contract to feed, train, supplement, or otherwise advance generative AI software.

H.1 LC52.201-1 CONTRACTING OFFICER'S REPRESENTATIVE (COR) APPOINTMENT AND AUTHORITY (JAN 2016)

(a) Performance of work under this contract is subject to the technical direction of the COR. The term “technical direction” includes, without limitation, direction to the contractor that directs or redirects the labor effort, shifts the work between work areas or locations, and/or fills in details and otherwise serves to ensure that tasks outlined in the contract are accomplished satisfactorily.

(b) Technical direction must be within the scope of the contract specification(s)/work statement. The COR does not have authority to issue technical direction that:

- (1) Constitutes additional work outside the contract specification(s)/work statement;
- (2) Constitutes a change as defined in the “Changes” clause of this contract;
- (3) Causes an increase or decrease in the contract price, or the time required for contract performance;
- (4) Changes any of the terms, conditions, or specification(s)/work statement of the contract;
- (5) Interferes with the contractor's right to perform under the terms and conditions of the contract; or
- (6) Directs, supervises or otherwise controls the actions of the contractor's employees.

(c) Technical direction may be oral or in writing. The COR must confirm oral direction in writing within five workdays, with a copy to the Contracting Officer.

(d) The Contractor shall proceed promptly with performance resulting from the technical direction issued by the COR. If, in the opinion of the contractor, any direction of the COR or the designated representative falls within the limitations of (b) above, the contractor shall immediately notify the Contracting Officer no later than the beginning of the next Government work day.

(e) Failure of the Contractor and the Contracting Officer to agree that technical direction is within the scope of the contract shall be subject to the terms of the “Disputes” clause of this contract.

(End of Clause)

H.2 LC52.203-1 CONTRACTOR PUBLICITY (OCT 2013)

The Contractor, or any entity or representative acting on behalf of the Contractor, may not refer to the equipment or services furnished pursuant to the provisions of this contract in any news release or commercial advertising, or in connection with any news release or commercial advertising, without first obtaining explicit written consent to do so from the Contracting Officer. Should any reference to such equipment or services appear in any news release or commercial advertising issued by or on behalf of the Contractor without the required consent, the Government will consider institution of all remedies available under applicable law.

(End of Clause)

H.3 LC52.204-1 COLLECTIONS SECURITY (DEC 2013)

(1) The Library is a public institution responsible for making its resources (collections and staff) available to the Congress and the American people. To achieve a balance between access and security, the Library requires everyone (staff, visitors, interns, contractors, etc.), to always use due diligence and protect its assets during use.

(2) Physical access to Library collections is limited to staff and/or determined by the host office. In addition, established requesting processes in the various readings rooms must be followed.

(3) Loan Privileges. Contractor employees may obtain loans of Library property for internal use and Library work-related purposes.

i. Loan of Library Property. All loans of Library property must be approved and documented by the host Library Services office. Contractor staff shall obtain a Library “General Pass” (Form LW 12/54 (rev2/88)) for each loan.

ii. Liability – Loss or Damage of Library Property. Use or loan of all Library property and signature on this contract means that the contractor acknowledges and agrees to:

- (a) ensure the return all Library property issued in the same condition as borrowed;
- (b) accept responsibility and liability for the negligent loss or damage of issued or borrowed Library property; and
- (c) ensure that the loaned property is used for Library purposes and not loaned to any other person.

(End of Clause)

H.4 LC52.204-3 INFORMATION SYSTEMS SECURITY (JUL 2024)

(1) Computer Security Policy. The Library requires anyone using or accessing its digital assets (including networks, servers, workstations, systems, data, web pages, and email) to protect them and use them only for official business, and only in accordance with Library regulations and applicable Library bargaining agreements. Unauthorized or inappropriate use may be grounds for termination or other contractual remedy.

(2) Privacy Policy. No one has the right to privacy while using any Library computer system, including internet or email services. Usage may be monitored.

(3) Level of Access. The Library’s Host Office will determine the level of access to the Library’s IT equipment, staff and software needed to successfully perform under this contract. Access may include, for example, email, word processing, internet, and intranet.

(4) Mandatory IT Security Training. Contractor staff must successfully complete mandatory information systems security training and access forms prior to use of or access to any of the Library's digital assets.

(a) The required training is available on the Library's learning management system, LOC Learn, at <https://www.loc.gov/extranet/cld/>. Library staff will provide further instructions upon onboarding.

(b) Contractor staff with access to Library digital assets shall complete the information systems security training annually. The training is available on the Library intranet at <https://www.loc.gov/staff/cld/>.

(End of Clause)

H.5 LC52.204-4 CONTRACTOR EMPLOYEE FITNESS (SEP 2024)

"Contractor employee fitness" means fitness based on character and conduct for work for or on behalf of the Government as a contractor employee.

Work under this contract is unclassified. However, the Library of Congress shall conduct background investigations of contractor personnel who will have 1) regular, ongoing, unescorted access to the Library's buildings, grounds, or collections, 2) access to Library information technology systems, and/or 3) access to Library information not available to the public, including information determined to be Controlled Unclassified Information (CUI), to ensure they meet basic standards of honesty and trustworthiness pursuant to Library regulations. The Library does not determine the fitness of employees to work for the contractor firm that hires them. The Library's interest is in determining whether contractor personnel should be granted greater access than the general public to Library facilities, Library information technology systems, and/or non-public Library information.

(1) Any access to non-public Library facilities, Library information technology systems, and/or non-public Library information will require a contractor employee fitness determination. All initial, existing, and reciprocal contractor employee fitness determinations will be subject to continuous vetting. Continuous vetting will vary based on position risk level. An example of continuous vetting is outlined in Trusted Workforce 2.0

(<https://www.performance.gov/trusted-workforce/> and <https://www.dcsa.mil/Personnel-Security/Continuous-Vetting/>).

(2) A favorable contractor employee fitness determination requires completion and successful adjudication of a security application request (release forms, fingerprints, and a full background investigation). To facilitate the fitness determination, the prospective contractor employee shall submit to the Library complete and accurate information as identified on the National Background Investigation Services (NBIS)'s eAPP (<https://eapp.nbis.mil>) or other system as provided by the Personnel Security Division (PSD). Contractors should anticipate a minimum of two weeks for the process, provided all requested information is timely, accurate and complete and that no adverse information is received. A background investigation generally will require that the candidate has cumulatively resided in the United States for at least three of the past five years. This requirement is subject to certain exceptions assessed on a case-by-case basis by PSD in accordance with established federal personnel vetting standards.

(3) After the contractor employee fitness determination, each contractor employee with a favorably adjudicated background investigation shall be enrolled in and subject to the Library's continuous vetting process. Enrollment in the Library's continuous vetting process also requires enrollment in the Federal Bureau of Investigation (FBI) Record of Arrest and Prosecution Background ("Rap Back") program, which provides the Library with notification of any criminal activity by the enrollee. Upon enrollment in Rap Back, the Library shall provide each enrollee with a notification of their rights with respect to the collection and use of their fingerprints and to the accuracy of the information obtained from Rap Back, as well as a copy of the FBI Privacy Act Statement that describes how FBI may use their fingerprint images.

(4) The fact that the Library may conduct background investigations and continuous vetting on assigned contractor personnel does not relieve the contractor of the responsibility to provide qualified, reliable personnel of sound character and conduct. This includes providing contractor personnel who can maintain compliance with the Library's requirement of a drug-free workplace and federal laws regarding controlled substances (see the Controlled Substances Act, 21 U.S.C. § 801 et seq. for the definition of controlled substances). In the event that drug testing is required for a contractor employee to obtain a favorable fitness determination, the contractor will be responsible for bearing the costs of such testing, conducting the testing in a manner consistent with federal vetting standards, which are based on the testing protocols published by the Substance Abuse and Mental Health Services Administration (SAMHSA), and providing the results to the Library.

(5) The Library may require removal of contractor staff from Library facilities and revocation of access to Library information technology systems and non-public Library information if investigative results raise concerns regarding a contractor employee's fitness or the contractor employee is non-compliant with the Library's instructions or requests for information during the vetting process. In such cases, the Contracting Officer (CO) or Contracting Officer Representative (COR) will notify the contractor of the unfit determination and need for the contractor employee to return all government equipment such as badges, keys and network tokens if issued. Contractor management staff may be required to escort the contractor employee from Library premises.

(6) The contractor will ensure the COR and CO are notified of all changes to those contractor personnel performing work on this contract that require non-public access.

(End of Clause)

H.6 LC52.237-1 KEY PERSONNEL (AUG 2014)

The personnel designated as key personnel in this contract are considered to be essential to the work being performed hereunder. At least 30 days prior to diverting any of the specified individuals to other programs or contracts or as soon as possible if an individual must be replaced, for example, as a result of leaving the employ of the contractor, the contractor shall notify the contracting officer and identify proposed substitutions. No diversion or substitution shall be made by the contractor without written consent of the contracting officer.

The following personnel have been identified as Key Personnel in the performance of this contract:

Position/Labor Category	Name
Program Manager	TBD on Award
Alternate Program Manager	TBD on Award
Crawl Engineer	TBD on Award
Quality Assurance Lead	TBD on Award

(End of Clause)

PART II - CONTRACT CLAUSES

SECTION I - CONTRACT CLAUSES

I.1 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/browse/index/far>

(End of Clause)

<u>FAR Number</u>	<u>Title</u>	<u>Date</u>
52.203-3	GRATUITIES	APR 1984
52.204-13	SYSTEM FOR AWARD MANAGEMENT MAINTENANCE	OCT 2018
52.204-19	INCORPORATION BY REFERENCE OF REPRESENTATIONS AND CERTIFICATIONS	DEC 2014
52.204-18	COMMERCIAL AND GOVERNMENT ENTITY CODE MAINTENANCE	AUG 2020
52.204-24	REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT	NOV 2021
52.204-26	COVERED TELECOMMUNICATIONS EQUIPMENT OR SERVICES—REPRESENTATION	OCT 2020
52.212-4	CONTRACT TERMS AND CONDITIONS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES	NOV 2023
52.225-25	PROHIBITION ON CONTRACTING WITH ENTITIES ENGAGING IN CERTAIN ACTIVITIES OR TRANSACTIONS RELATING TO IRAN—REPRESENTATION AND CERTIFICATIONS	JUN 2020
52.227-14	RIGHTS IN DATA—GENERAL	MAY 2014
52.232-39	UNENFORCEABILITY OF UNAUTHORIZED OBLIGATIONS	JUN 2013
52.233-1	DISPUTES	MAY 2014
52.242-13	BANKRUPTCY	JUL 1995
52.243-1	CHANGES—FIXED PRICE ALTERNATE I (APR 1984)	AUG 2018
52.253-1	COMPUTER GENERATED FORMS	JAN 1991
52.245-1	GOVERNMENT PROPERTY	SEP 2021
52.245-9	USE AND CHARGES	APR 2012

I.2 52.212-5 CONTRACT TERMS AND CONDITIONS REQUIRED TO IMPLEMENT STATUTES OR EXECUTIVE ORDERS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (OCT 2025)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).

(3) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (NOV 2015).

(5) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801).

(6) 52.233-3, Protest After Award (AUG 1996) (31 U.S.C. 3553).

(7) 52.233-4, Applicable Law for Breach of Contract Claim (OCT 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[X] (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (JUN 2020), with Alternate I (NOV 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655).

[X] (2) 52.203-13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509).

[] (3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (JUN 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

[X] (4) 52.203-17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community—see FAR 3.900(a).

[] (5) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (JUN 2020) (Pub. L. 109-282) (31 U.S.C. 6101 note).

[] (6) [Reserved]

[] (7) 52.204-14, Service Contract Reporting Requirements (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).

[X] (8) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).

[X] (9) 52.204-27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).

☐ (10) 52.204–28, Federal Acquisition Supply Chain Security Act Orders—Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (DEC 2023) (Pub. L. 115–390, title II).

☐ (11)(i) 52.204–30, Federal Acquisition Supply Chain Security Act Orders— Prohibition. (DEC 2023) (Pub. L. 115–390, title II).

☐ (ii) Alternate I (DEC 2023) of 52.204–30.

☒ (12) 52.209–6, Protecting the Government’s Interest When Subcontracting with Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (JAN 2025) (31 U.S.C. 6101 note).

☒ (13) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (OCT 2018) (41 U.S.C. 2313).

☐ (14) [Reserved]

☐ (15) 52.219–3, Notice of HUBZone Set-Aside or Sole-Source Award (OCT 2022) (15 U.S.C. 657a).

☐ (16) 52.219–4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (OCT 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).

☐ (17) [Reserved]

☐ (18)(i) 52.219-6, Notice of Total Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).

☐ (ii) Alternate I (MAR 2020) of 52.219-6.

☐ (19)(i) 52.219-7, Notice of Partial Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).

☐ (ii) Alternate I (MAR 2020) of 52.219-7.

☐ (20) 52.219-8, Utilization of Small Business Concerns (JAN 2025) (15 U.S.C. 637(d)(2) and (3)).

☐ (21)(i) 52.219–9, Small Business Subcontracting Plan (JAN 2025) (15 U.S.C. 637(d)(4)).

☐ (ii) Alternate I (NOV 2016) of 52.219-9.

☐ (iii) Alternate II (NOV 2016) of 52.219-9.

☐ (iv) Alternate III (JAN 2025) of 52.219–9.

☐ (v) Alternate IV (JAN 2025) of 52.219–9.

☐ (22)(i) 52.219-13, Notice of Set-Aside of Orders (MAR 2020) (15 U.S.C. 644(r)).

☐ (ii) Alternate I (MAR 2020) of 52.219-13.

☐ (23) 52.219–14, Limitations on Subcontracting (OCT 2022) (15 U.S.C. 657s).

☐ (24) 52.219-16, Liquidated Damages—Subcontracting Plan (SEP 2021) (15 U.S.C. 637(d)(4)(F)(i)).

☐ (25) 52.219–27, Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (FEB 2024) (15 U.S.C. 657f).

☐ (26) (i) 52.219-28, Postaward Small Business Program Rerepresentation (JAN 2025) (15 U.S.C. 632(a)(2)).

☐ (ii) Alternate I (MAR 2020) of 52.219–28.

☐ (27) 52.219–29, Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (OCT 2022) (15 U.S.C. 637(m)).

☐ (28) 52.219–30, Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (OCT 2022) (15 U.S.C. 637(m)).

☐ (29) 52.219-32, Orders Issued Directly Under Small Business Reserves (MAR 2020) (15 U.S.C. 644(r)).

☐ (30) 52.219–33, Nonmanufacturer Rule (SEP 2021) (15 U.S.C. 637(a)(17)).

☒ (31) 52.222-3, Convict Labor (JUN 2003) (E.O. 11755).

☐ (32) 52.222–19, Child Labor—Cooperation with Authorities and Remedies (JAN 2025) (E.O. 13126).

☒ (33) 52.222-21, Prohibition of Segregated Facilities (APR 2015).

☒ (34)(i) 52.222–26, Equal Opportunity (SEP 2016) (E.O. 11246).

☐ (ii) Alternate I (FEB 1999) of 52.222-26.

☒ (35)(i) 52.222–35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

☐ (ii) Alternate I (JUL 2014) of 52.222-35.

☒ (36)(i) 52.222–36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

☐ (ii) Alternate I (JUL 2014) of 52.222-36.

☒ (37) 52.222–37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

☒ (38) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496).

☒ (39)(i) 52.222-50, Combating Trafficking in Persons (OCT 2025) (22 U.S.C. chapter 78 and E.O. 13627).

☐ (ii) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

☒ (40) 52.222-54, Employment Eligibility Verification (JAN 2025). (E.O. 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR 22.1803.)

☐ (41)(i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA-Designated Items (MAY 2008) (42 U.S.C.6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

☐ (ii) Alternate I (MAY 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

☐ (42) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (MAY 2024) (42 U.S.C. 7671, *et seq.*).

☐ (43) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (MAY 2024) (42 U.S.C. 7671, *et seq.*).

☐ (44) 52.223-20, Aerosols. (MAY 2024) (42 U.S.C. 7671, *et seq.*).

☐ (45) 52.223-21, Foams (MAY 2024). (42 U.S.C. 7671, *et seq.*).

☐ (46) 52.223-23, Sustainable Products and Services (MAY 2024) (E.O. 14057, 7 U.S.C. 8102, 42 U.S.C. 6962, 42 U.S.C. 8259b, and 42 U.S.C. 7671l).

☐ (47)(i) 52.224-3, Privacy Training (JAN 2017) (5 U.S.C. 552a).

☐ (ii) Alternate I (JAN 2017) of 52.224-3.

☐ (48)(i) 52.225-1, Buy American—Supplies (OCT 2022) (41 U.S.C. chapter 83).

- ☐ (ii) Alternate I (OCT 2022) of 52.225-1.
- ☐ (49)(i) 52.225-3, Buy American—Free Trade Agreements—Israeli Trade Act (NOV 2023) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43).
- ☐ (ii) Alternate I [Reserved].
- ☐ (iii) Alternate II (JAN 2025) of 52.225-3.
- ☐ (iv) Alternate III (FEB 2024) of 52.225-3.
- ☐ (v) Alternate IV (OCT 2022) of 52.225-3.
- ☐ (50) 52.225-5, Trade Agreements (NOV 2023) (19 U.S.C. 2501, *et seq.*, 19 U.S.C. 3301 note
- ☒ (51) 52.225-13, Restrictions on Certain Foreign Purchases (FEB 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).
- ☐ (52) 52.225-26, Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).
- ☐ (53) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (NOV 2007) (42 U.S.C. 5150).
- ☐ (54) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (NOV 2007) (42 U.S.C. 5150).
- ☒ (55) 52.226-8, Encouraging Contractor Policies to Ban Text Messaging While Driving (MAY 2024) (E.O. 13513)
- ☒ (56) 52.229-12, Tax on Certain Foreign Procurements (FEB 2021).
- ☐ (57) 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).
- ☐ (58) 52.232-30, Installment Payments for Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).
- ☒ (59) 52.232-33, Payment by Electronic Funds Transfer—System for Award Management (OCT 2018) (31 U.S.C. 3332).
- ☐ (60) 52.232-34, Payment by Electronic Funds Transfer—Other than System for Award Management (JUL 2013) (31 U.S.C. 3332).
- ☐ (61) 52.232-36, Payment by Third Party (MAY 2014) (31 U.S.C. 3332).
- ☐ (62) 52.239-1, Privacy or Security Safeguards (AUG 1996) (5 U.S.C. 552a).
- ☒ (63) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act—Covered Foreign Entities (NOV 2024) (Sections 1821–1826, Pub. L. 118–31, 41 U.S.C. 3901 note prec.).
- ☐ (64) 52.242-5, Payments to Small Business Subcontractors (JAN 2017)(15 U.S.C. 637(d)(13)).
- ☐ (65)(i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).
- ☐ (ii) Alternate I (APR 2003) of 52.247-64.
- ☐ (iii) Alternate II (NOV 2021) of 52.247-64.

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

- ☐ (1) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).
- ☐ (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (MAY 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).
- ☐ (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards—Price Adjustment (Multiple Year and Option Contracts) (AUG 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).
- ☐ (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards—Price Adjustment (MAY 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).
- ☐ (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment—Requirements (MAY 2014) (41 U.S.C. chapter 67).
- ☐ (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services—Requirements (MAY 2014) (41 U.S.C. chapter 67).
- ☐ (7) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).
- ☐ (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).
- ☐ (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) (42 U.S.C. 1792).
- ☐ (10) 52.247-69, Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (JAN 2025) (49 U.S.C. 40118(g)).

(d) Comptroller General Examination of Record. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records—Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR Subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e)(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1) in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause—

(i) 52.203–13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509).

(ii) 52.203–17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712).

(iii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) 52.204–23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115–91).

(v) 52.204–25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115–232).

(vi) 52.204–27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117–328).

(vii) (A) 52.204–30, Federal Acquisition Supply Chain Security Act Orders— Prohibition. (DEC 2023) (Pub. L. 115–390, title II).

(B) Alternate I (DEC 2023) of 52.204–30.

(viii) 52.219–8, Utilization of Small Business Concerns (JAN 2025) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219–8 in lower tier subcontracts that offer subcontracting opportunities.

(ix) 52.222-21, Prohibition of Segregated Facilities (APR 2015).

(x) 52.222–26, Equal Opportunity (SEP 2016) (E.O. 11246).

(xi) 52.222–35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

(xii) 52.222–36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

(xiii) 52.222–37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

(xiv) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.

(xv) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).

(xvi)(A) 52.222-50, Combating Trafficking in Persons (OCT 2025) (22 U.S.C. chapter 78 and E.O. 13627).

(B) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

(xvii) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment—Requirements (MAY 2014) (41 U.S.C. chapter 67).

(xviii) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services—Requirements (MAY 2014) (41 U.S.C. chapter 67).

(xix) 52.222-54, Employment Eligibility Verification (JAN 2025) (E.O. 12989).

(xx) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).

(xxi) 52.222-62 Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).

(xxii)(A) 52.224-3, Privacy Training (JAN 2017) (5 U.S.C. 552a).

(B) Alternate I (JAN 2017) of 52.224-3.

(xxiii) 52.225–26, Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxiv) 52.226–6, Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(xxv) 52.232–40, Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232–40.

(xxvi) 52.240–1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act—Covered Foreign Entities (NOV 2024) (Sections 1821–1826, Pub. L. 118–31, 41 U.S.C.3901 note prec.).

(xxvii) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of Clause)

I.3 52.216-18 ORDERING (AUG 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from June 1, 2026 through May 31, 2031. If a six-month extension of services is executed, the final day to place an order is December 1, 2031.

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when—

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or

(3) If sent electronically, the Government either—

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of Clause)

I.4 52.216-19 ORDER LIMITATIONS (OCT 1995)

(a) *Minimum order.* When the Government requires supplies or services covered by this contract in an amount of less than \$300,000.00, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) *Maximum order.* The Contractor is not obligated to honor—

(1) Any order for a single item in excess of \$5,000,000.00;

(2) Any order for a combination of items in excess of \$15,000,000.00; or

(3) A series of orders from the same ordering office within 30 days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.

(c) If this is a requirements contract (i.e., includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within 14 days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of Clause)

I.5 52.216-22 INDEFINITE QUANTITY (OCT 1995)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; *provided*, that the Contractor shall not be required to make any deliveries under this contract after December 1, 2032.

(End of Clause)

I.6 LC52.212-4 CONTRACT TERMS AND CONDITIONS - COMMERCIAL ITEMS (DEV) (FEB 2016)

FAR 52.212-4, Contract Terms and Conditions – Commercial Items. The clause is modified as follows:

(1) The Library will apply FAR 52.243-1 (Changes – Fixed Price) to any changes under this contract instead of section (c).

(2) The reference in section (d) to the Disputes clause at FAR 52.233-1 refers to the clause as modified by the Library.

(3) The references in section (g)(2) and (i)(2) to the Prompt Payment Act (31 U.S.C. 3903) and prompt payment regulations at 5 C.F.R. part 1315 refer instead to the Prompt Payment clause at FAR 52.232-25 as modified by the Library.

(End of Clause)

I.7 LC52.212-5 CONTRACT TERMS AND CONDITIONS REQUIRED TO IMPLEMENT STATUTES OR EXECUTIVE ORDERS - COMMERCIAL ITEMS (DEV) (MAY 2015)

FAR 52.212-5, The clause is modified as follows:

(1) The Librarian of Congress has the same rights and access provided to the Comptroller General in FAR 52.212-5.

(End of Clause)

I.8 LC52.216-1 ORDER PLACEMENT – SINGLE AWARD INDEFINITE DELIVERY, INDEFINITE QUANTITY (FEB 2016)

Orders will be issued by the contracting officer via e-mail. While the Library reserves the right to unilaterally issue orders for work identified in this contract, the Library will generally solicit proposals and issue orders bi-laterally, in which case the signature of the contractor and the contracting officer are necessary for full execution of each order. All orders are subject to the terms and conditions of this contract. In the event of a conflict between an order and this contract, the contract shall control.

The contractor shall not accept orders which exceed the “not-to-exceed” amount of the contract or which are placed after the end of the contract ordering period.

(End of Provision)

I.9 LC52.232-25 PROMPT PAYMENT (DEV) (JUL 2013)

The Library of Congress is not an agency subject to the Prompt Payment Act. 31 U.S.C. 3901(a)(1). The clause is modified as follows:

(1) The following new paragraph (iv) is added to the conditions for paying interest penalty payments in section (a)(4): “(a)(4)(iv) The contract or purchase order contained a provision that expressly required the Library of Congress to pay an interest penalty.”

(2) The reference in section (a)(5)(ii) to the Disputes clause at FAR 52.233-1 refers to the clause as modified by the Library.

(3) Section (a)(6) is replaced with the following: “Interest penalty payments shall be handled in accordance with the Prompt Payment clause at FAR 52.232-25 as modified by the Library.”

(4) Section (b) relating to Contract Financing Payment is deleted.

(End of Clause)

I.10 LC52.239-1 INFORMATION SECURITY (JUL 2025)

The work to be conducted is considered Controlled Unclassified Information (CUI) pursuant to National Institute of Standards and Technology (NIST) Special Publication (SP) 800-53 (rev 4) or current version. The Contractor shall ensure that all non-public Library information processed under this contract shall be protected from unauthorized use and mishandling by the Contractor. Information includes both hard copy (paper) formats and soft copy (stored in electronic form, e.g., hard disks, tapes, flash drives, CD-ROM/CD-R, etc.).

(a) The Contractor shall store hard copies and soft copies contained on removable media (e.g., tapes, floppy disks, flash drives, CD-ROM/CD-R, etc.) in a government-approved storage container per the direction of the Contracting Officer Representative (COR) or the Library of Congress Project Manager when not under the direct control of Contractor Key Personnel.

(b) The Contractor shall treat any information developed on security vulnerabilities and any Government provided non-public information as "CUI."

(c) The Contractor personnel shall label and protect this information as "Security Category: Moderate," placing this designation in the footer.

(d) The Contractor shall ensure that all documents designated "Security Category: Moderate," "Security Category: High" and "Limited Official Use Only" are not emailed to or from an external email system. These documents may only be emailed between Library of Congress email accounts, or within a secured corporate email network.

(e) The Contractor shall ensure that all documents designated "Security Category: Moderate," "Security Category: High" and "Limited Official Use Only" are shredded, burned, or otherwise destroyed before being disposed of in accordance with applicable corporate and federal records management policies.

(f) The Contractor shall dispose of all documents designated "Security Category: Moderate," "Security Category: High" and "Limited Official Use Only" remaining in the Contractor's possession at the end of the contract term.

(g) The Contractor shall ensure that all Contractor workstations used to process Library information utilizes anti-virus and anti-spyware utilities that are configured to continuously monitor and to automatically update as well as having automatic operating system patching in place.

(h) The Contractor shall ensure that all Contractor workstations used to process Library information employ a firewall that can either be software running on the workstation or a stand-alone firewall that protects the workstation from unauthorized access from any other devices, including devices on the Contractor's corporate network.

(i) The Contractor shall ensure that all Library information that is labeled "Security Category: Moderate," "Security Category: High" and "Limited Official Use Only" is encrypted using a [Federal Information Processing Standards Publication \(FIPS\) 140-3](#) validated application configured in FIPS mode. This includes information stored on internal hard drives and removable devices (e.g., CD-Rs, flash drives, etc.).

(j) The Contractor must provide a written list of anti-virus, anti-spyware, firewall, encryption products, versions and proof of licenses, along with the automatic operating system patching status, MAC address (if applicable) and user name for each system being used to process Library information. Patching shall include Operating System packages and third party software installed on any systems accessing the Library Networks.

(k) In accordance with NIST SP 800-61 (rev 3) or current version, the Contractor shall report to infosec@loc.gov, the Contracting Officer, and the COR any adverse events that are computer security related or computer security incidents (adverse events and computer security incidents as defined in NIST SP 800-61 (rev 3) or current version) concerning

Library CUI within 24-hours of its discovery. The contractor shall coordinate its response to such an event or incident with the Library.

(l) The Contractor shall not provide any government-furnished non-public documents, information, or licensed material in any form to anyone other than the Contracting Officer, the COR, or the Library of Congress Project Manager without the written approval of the Contracting Officer, the COR, or the Library of Congress Project Manager during the period of this contract or at any time afterwards.

(m) The Contractor shall not release any government documents or information related to IT Security in any form without the written approval of the Library's IT Security Group.

(n) The Contractor shall ensure that all Contractor personnel sign nondisclosure agreements (NDAs).

(o) The Contractor shall ensure that all Contractor personnel complete the Library of Congress IT Security Awareness Training on an annual basis.

(End of Clause)

I.11 LC52.233-1 52.233-1 (DEV) DISPUTES (MAY 2014)

To reflect the provisions of the Legislative Branch Appropriations Act, 2008 (Pub. L. 110-161, div. H., title I, § 1501, Dec. 26, 2007, 121 Stat. 2249, 31 U.S.C. 702 note), the clause is modified as follows:

The amount in sections (c), (d)(2)(i), and (e) is \$50,000 instead of \$100,000.

See also regulations of the Government Accountability Office Contract Appeals Board at 4 C.F.R. part 22.

(End of Clause)

PART III - LIST OF DOCUMENTS, EXHIBITS AND OTHER ATTACHMENTS

SECTION J - LIST OF ATTACHMENTS

See attached document: J1 - Description-of-Tech-Environment_20250912 - (pp. 3).

See attached document: J2a - Sample Web Crawl Requirement_20251222 - (pp. 1).

See attached document: J2b - Sample_Web_Crawl_Seed_List_20250917 - (pp. 13).

See attached document: J3 - Past Performance Questionnaire - PPQ - (pp. 2).

See attached document: J4 - Price Schedule_WebHarvesting - (pp. 1).

See attached document: J5 - Web Archiving FAQ_20260115 (pp. 4).

See attached document: J6 - Configuring Crawl Jobs - Heritrix 3_20260115 (pp. 22).

See attached document: J7 - ISO 28500_2017 WARC file format_20260115 (pp. 2).

See attached document: J8 - SAMPLE Task Order SOW - 20251212 (pp. 4).

PART IV - REPRESENTATIONS AND INSTRUCTIONS

SECTION K - REPRESENTATIONS, CERTIFICATIONS AND OTHER STATEMENTS OF OFFERORS

K.1 52.212-3 OFFEROR REPRESENTATIONS AND CERTIFICATIONS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (OCT 2025)

The Offeror shall complete only paragraph (b) of this provision if the Offeror has completed the annual representations and certification electronically in the System for Award Management (SAM) accessed through <https://www.sam.gov>. If the Offeror has not completed the annual representations and certifications electronically, the Offeror shall complete only paragraphs (c) through (v) of this provision.

(a) *Definitions.* As used in this provision—

Covered telecommunications equipment or services has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR 127, and the concern is identified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business eligible under the WOSB Program.

Forced or indentured child labor means all work or service—

(1) Exacted from any person under the age of 18 under the menace of any penalty for its nonperformance and for which the worker does not offer himself voluntarily; or

(2) Performed by any person under the age of 18 pursuant to a contract the enforcement of which can be accomplished by process or penalties.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: Ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.

Inverted domestic corporation means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395(b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

Manufactured end product means any end product in product and service codes (PSCs) 1000-9999, except—

- (1) PSC 5510, Lumber and Related Basic Wood Materials;
- (2) Product or Service Group (PSG) 87, Agricultural Supplies;

- (3) PSG 88, Live Animals;
- (4) PSG 89, Subsistence;
- (5) PSC 9410, Crude Grades of Plant Materials;
- (6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;
- (7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;
- (8) PSC 9610, Ores;
- (9) PSC 9620, Minerals, Natural and Synthetic; and
- (10) PSC 9630, Additive Metal Materials.

Place of manufacture means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

Predecessor means an entity that is replaced by a successor and includes any predecessors of the predecessor.

Reasonable inquiry has the meaning provided in the clause 52.204–25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate—

- (1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;
- (2) Are conducted pursuant to specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;
- (3) Consist of providing goods or services to marginalized populations of Sudan;
- (4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;
- (5) Consist of providing goods or services that are used only to promote health or education; or
- (6) Have been voluntarily suspended.

Sensitive technology—

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically—

- (i) To restrict the free flow of unbiased information in Iran; or
- (ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

Service-disabled veteran-owned small business (SDVOSB) concern means a small business concern—

(1)(i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and

(ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran; or

(2) A small business concern eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart 19.14).

(3) *Service-disabled veteran*, as used in this definition, means a veteran as defined in 38 U.S.C. 101(2), with a disability that is service-connected, as defined in 38 U.S.C. 101(16), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or successor system that is maintained by the Department of Veterans Affairs' Veterans Benefits Administration, as a service-disabled veteran.

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that—

(1) Effective January 1, 2024, is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or

(2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

Service-disabled veteran-owned small business (SDVOSB) Program means a program that authorizes contracting officers to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program.

Small business concern—

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and size standards in this solicitation.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that—

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by—

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States; and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals, who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Subsidiary means an entity in which more than 50 percent of the entity is owned—

- (1) Directly by a parent corporation; or
- (2) Through another subsidiary of a parent corporation.

Successor means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term “successor” does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.

Veteran-owned small business concern means a small business concern—

- (1) Not less than 51 percent of which is owned and controlled by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and
- (2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned business concern means a concern which is at least 51 percent owned by one or more women; or in the case of any publicly owned business, at least 51 percent of its stock is owned by one or more women; and whose management and daily business operations are controlled by one or more women.

Women-owned small business concern means a small business concern—

- (1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and
- (2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127), means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)(1) Annual Representations and Certifications. Any changes provided by the Offeror in paragraph (b)(2) of this provision do not automatically change the representations and certifications in SAM.

(2) The offeror has completed the annual representations and certifications electronically in SAM accessed through <http://www.sam.gov>. After reviewing SAM information, the Offeror verifies by submission of this offer that the representations and certifications currently posted electronically at FAR 52.212–3, Offeror Representations and Certifications—Commercial Products and Commercial Services, have been entered or updated in the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard(s) applicable to the NAICS code(s) referenced for this solicitation), at the time this offer is submitted and are incorporated in this offer by reference (see FAR 4.1201), except for paragraphs .

(c) Offerors must complete the following representations when the resulting contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii). Check all that apply.

(1) *Small business concern*. The offeror represents as part of its offer that—

- (i) It ☐ is, ☐ is not a small business concern; or
- (ii) It ☐ is, ☐ is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture:* _____.]

(2) *Veteran-owned small business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it ☐ is, ☐ is not a veteran-owned small business concern.

(3) *SDVOSB concern.* [Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(2) of this provision.] The offeror represents that it ☐ is, ☐ is not an SDVOSB concern.

(4) *SDVOSB concern joint venture eligible under the SDVOSB Program.* The offeror represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [Complete only if the offeror represented itself as an SDVOSB concern in paragraph (c)(3) of this provision.] [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(5) *Small disadvantaged business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is, ☐ is not a small disadvantaged business concern as defined in 13 CFR 124.1001.

(6) *Women-owned small business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is, ☐ is not a women-owned small business concern.

(7) *WOSB joint venture eligible under the WOSB Program.* [Complete only if the offeror represented itself as a women-owned small business concern in paragraph (c)(5) of this provision.] The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

(8) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR part 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

Note to Paragraphs (c)(9) and (10): Complete paragraphs (c)(9) and (10) only if this solicitation is expected to exceed the simplified acquisition threshold.

(9) *Women-owned business concern (other than small business concern).* [Complete only if the offeror is a women-owned business concern and did not represent itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is a women-owned business concern.

(10) *Tie bid priority for labor surplus area concerns.* If this is an invitation for bid, small business offerors may identify the labor surplus areas in which costs to be incurred on account of manufacturing or production (by offeror or first-tier subcontractors) amount to more than 50 percent of the contract price:

(11) *HUBZone small business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents, as part of its offer, that—

(i) It ☐ is, ☐ is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see 13 CFR 126.200(e)(1)); and

(ii) It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR Part 126.616(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

_____]. Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.

(d) Representations required to implement provisions of Executive Order 11246—

(1) *Previous contracts and compliance.* The offeror represents that—

(i) It [] has, [] has not participated in a previous contract or subcontract subject to the Equal Opportunity clause of this solicitation; and

(ii) It [] has, [] has not filed all required compliance reports.

(2) *Affirmative Action Compliance.* The offeror represents that—

(i) It [] has developed and has on file, [] has not developed and does not have on file, at each establishment, affirmative action programs required by rules and regulations of the Secretary of Labor (41 CFR parts 60-1 and 60-2), or

(ii) It [] has not previously had contracts subject to the written affirmative action programs requirement of the rules and regulations of the Secretary of Labor.

(e) *Certification Regarding Payments to Influence Federal Transactions* (31 U.S.C. 1352). (Applies only if the contract is expected to exceed \$200,000.) By submission of its offer, the offeror certifies to the best of its knowledge and belief that no Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress or an employee of a Member of Congress on his or her behalf in connection with the award of any resultant contract. If any registrants under the Lobbying Disclosure Act of 1995 have made a lobbying contact on behalf of the offeror with respect to this contract, the offeror shall complete and submit, with its offer, OMB Standard Form LLL, Disclosure of Lobbying Activities, to provide the name of the registrants. The offeror need not report regularly employed officers or employees of the offeror to whom payments of reasonable compensation were made.

(f) *Buy American Certificate.* (Applies only if the clause at Federal Acquisition Regulation (FAR) 52.225-1, Buy American—Supplies, is included in this solicitation.)

(1)(i) The Offeror certifies that each end product, except those listed in paragraph (f)(2) of this provision, is a domestic end product and that each domestic end product listed in paragraph (f)(3) of this provision contains a critical component.

(ii) The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select “no”.

(iii) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

(iv) The terms “commercially available off-the-shelf (COTS) item,” “critical component,” “domestic end product,” “end product,” “foreign end product,” and “United States” are defined in the clause of this solicitation entitled “Buy American—Supplies.”

(2) Foreign End Products:

Line item No.	Country of origin	Exceeds 55% domestic content
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		(yes/no)

[List as necessary]

(3) Domestic end products containing a critical component: Line Item No. _____

[List as necessary]

(4) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25.

(g)(1) *Buy American—Free Trade Agreements—Israeli Trade Act Certificate.* (Applies only if the clause at FAR 52.225-3, *Buy American—Free Trade Agreements—Israeli Trade Act*, is included in this solicitation.)

(i)(A) The Offeror certifies that each end product, except those listed in paragraph (g)(1)(ii) or (iii) of this provision, is a domestic end product and that each domestic end product listed in paragraph (g)(1)(iv) of this provision contains a critical component.

(B) The terms “Bahraini, Moroccan, Omani, Panamanian, or Peruvian end product,” “commercially available off-the-shelf (COTS) item,” “critical component,” “domestic end product,” “end product,” “foreign end product,” “Free Trade Agreement country,” “Free Trade Agreement country end product,” “Israeli end product,” and “United States” are defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act.”

(ii) The Offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act.”

Free Trade Agreement Country End Products (Other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian End Products) or Israeli End Products:

Line item No.	Country of origin

[List as necessary]

(iii) The Offeror shall list those supplies that are foreign end products (other than those listed in paragraph (g)(1)(ii) of this provision) as defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act.” The Offeror shall list as other foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select “no”.

Other Foreign End Products:

Line item No.	Country of origin	Exceeds 55% domestic content (yes/no)

[List as necessary]

(iv) The Offeror shall list the line item numbers of domestic end products that contain a critical component (see FAR 25.105). Line Item No. _____

[List as necessary]

(v) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25.

(2) *Buy American—Free Trade Agreements—Israeli Trade Act Certificate, Alternate II.* If *Alternate II* to the clause at FAR 52.225-3 is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:

(g)(1)(ii) The offeror certifies that the following supplies are Israeli end products as defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act”:

Israeli End Products:

Line item No.	Country of origin

[List as necessary]

(3) *Buy American—Free Trade Agreements—Israeli Trade Act Certificate, Alternate III.* If *Alternate III* to the clause at 52.225-3 is included in this solicitation, substitute the following paragraphs (g)(1)(i)(B) and (g)(1)(ii) for paragraphs (g)(1)(i)(B) and (g)(1)(ii) of the basic provision:

(g)(1)(i)(B) The terms “Korean end product”, “commercially available off-the shelf (COTS) item,” “critical component,” “domestic end product,” “end product,” “foreign end product,” “Free Trade Agreement country,” “Free Trade Agreement country end product,” “Israeli end product,” and “United States” are defined in the clause of this solicitation entitled “Buy American— Free Trade Agreements—Israeli Trade Act.”

(g)(1)(ii) The Offeror certifies that the following supplies are Korean end products or Israeli end products as defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act”:

Korean End Products or Israeli End Products:

Line item No.	Country of origin
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[List as necessary]

(4) *Trade Agreements Certificate*. (Applies only if the clause at FAR 52.225-5, Trade Agreements, is included in this solicitation.)

(i) The offeror certifies that each end product, except those listed in paragraph (g)(4)(ii) of this provision, is a U.S.-made or designated country end product, as defined in the clause of this solicitation entitled "Trade Agreements".

(ii) The offeror shall list as other end products those end products that are not U.S.-made or designated country end products.

Other End Products:

Line item No.	Country of origin

[List as necessary]

(iii) The Government will evaluate offers in accordance with the policies and procedures of FAR Part 25. For line items covered by the WTO GPA, the Government will evaluate offers of U.S.-made or designated country end products without regard to the restrictions of the Buy American statute. The Government will consider for award only offers of U.S.-made or designated country end products unless the Contracting Officer determines that there are no offers for such products or that the offers for such products are insufficient to fulfill the requirements of the solicitation.

(h) *Certification Regarding Responsibility Matters* (Executive Order 12689). (Applies only if the contract value is expected to exceed the simplified acquisition threshold.) The offeror certifies, to the best of its knowledge and belief, that the offeror and/or any of its principals—

(1) [] Are, [] are not presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(2) [] Have, [] have not, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a Federal, state or local government contract or subcontract; violation of Federal or state antitrust statutes relating to the submission of offers; or Commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property;

(3) [] Are, [] are not presently indicted for, or otherwise criminally or civilly charged by a Government entity with, commission of any of these offenses enumerated in paragraph (h)(2) of this clause; and

(4) [] Have, [] have not, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104–5(a)(2) for which the liability remains unsatisfied.

(i) Taxes are considered delinquent if both of the following criteria apply:

(A) *The tax liability is finally determined.* The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(B) *The taxpayer is delinquent in making payment.* A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) *Examples.*

(A) The taxpayer has received a statutory notice of deficiency, under I.R.C. Sec. 6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(B) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. Sec. 6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(C) The taxpayer has entered into an installment agreement pursuant to I.R.C. Sec. 6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(D) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. 362 (the Bankruptcy Code).

(i) *Certification Regarding Knowledge of Child Labor for Listed End Products (Executive Order 13126).*

(1) *Listed end products.*

Listed end product	Listed countries of origin

(2) *Certification. [If the Contracting Officer has identified end products and countries of origin in paragraph (i)(1) of this provision, then the offeror must certify to either (i)(2)(i) or (i)(2)(ii) by checking the appropriate block.]*

[] (i) The offeror will not supply any end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product.

☐ (ii) The offeror may supply an end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product. The offeror certifies that it has made a good faith effort to determine whether forced or indentured child labor was used to mine, produce, or manufacture any such end product furnished under this contract. On the basis of those efforts, the offeror certifies that it is not aware of any such use of child labor.

(j) *Place of manufacture.* (Does not apply unless the solicitation is predominantly for the acquisition of manufactured end products.) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly—

(1) ☐ In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or

(2) ☐ Outside the United States.

(k) *Certificates regarding exemptions from the application of the Service Contract Labor Standards.* (Certification by the offeror as to its compliance with respect to the contract also constitutes its certification as to compliance by its subcontractor if it subcontracts out the exempt services.) [*The contracting officer is to check a box to indicate if paragraph (k)(1) or (k)(2) applies.*]

☐ (1) Maintenance, calibration, or repair of certain equipment as described in FAR 22.1003-4(c)(1). The offeror ☐ does ☐ does not certify that—

(i) The items of equipment to be serviced under this contract are used regularly for other than Governmental purposes and are sold or traded by the offeror (or subcontractor in the case of an exempt subcontract) in substantial quantities to the general public in the course of normal business operations;

(ii) The services will be furnished at prices which are, or are based on, established catalog or market prices (see FAR 22.1003- 4(c)(2)(ii)) for the maintenance, calibration, or repair of such equipment; and

(iii) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract will be the same as that used for these employees and equivalent employees servicing the same equipment of commercial customers.

☐ (2) Certain services as described in FAR 22.1003- 4(d)(1). The offeror ☐ does ☐ does not certify that—

(i) The services under the contract are offered and sold regularly to non-Governmental customers, and are provided by the offeror (or subcontractor in the case of an exempt subcontract) to the general public in substantial quantities in the course of normal business operations;

(ii) The contract services will be furnished at prices that are, or are based on, established catalog or market prices (see FAR 22.1003-4(d)(2)(iii));

(iii) Each service employee who will perform the services under the contract will spend only a small portion of his or her time (a monthly average of less than 20 percent of the available hours on an annualized basis, or less than 20 percent of available hours during the contract period if the contract period is less than a month) servicing the Government contract; and

(iv) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract is the same as that used for these employees and equivalent employees servicing commercial customers.

(3) If paragraph (k)(1) or (k)(2) of this clause applies—

(i) If the offeror does not certify to the conditions in paragraph (k)(1) or (k)(2) and the Contracting Officer did not attach a Service Contract Labor Standards wage determination to the solicitation, the offeror shall notify the Contracting Officer as soon as possible; and

(ii) The Contracting Officer may not make an award to the offeror if the offeror fails to execute the certification in paragraph (k)(1) or (k)(2) of this clause or to contact the Contracting Officer as required in paragraph (k)(3)(i) of this clause.

(l) *Taxpayer Identification Number (TIN)* (26 U.S.C. 6109, 31 U.S.C. 7701). (Not applicable if the offeror is required to provide this information to SAM to be eligible for award.)

(1) All offerors must submit the information required in paragraphs (l)(3) through (l)(5) of this provision to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d), reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M, and implementing regulations issued by the Internal Revenue Service (IRS).

(2) The TIN may be used by the Government to collect and report on any delinquent amounts arising out of the offeror's relationship with the Government (31 U.S.C. 7701(c)(3)). If the resulting contract is subject to the payment reporting requirements described in FAR 4.904, the TIN provided hereunder may be matched with IRS records to verify the accuracy of the offeror's TIN.

(3) *Taxpayer Identification Number (TIN)*.

☐ TIN: _____.

☐ TIN has been applied for.

☐ TIN is not required because:

☐ Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

☐ Offeror is an agency or instrumentality of a foreign government;

☐ Offeror is an agency or instrumentality of the Federal Government.

(4) *Type of organization*.

☐ Sole proprietorship;

☐ Partnership;

☐ Corporate entity (not tax-exempt);

☐ Corporate entity (tax-exempt);

☐ Government entity (Federal, State, or local);

☐ Foreign government;

☐ International organization per 26 CFR 1.6049-4;

☐ Other _____.

(5) *Common parent*.

☐ Offeror is not owned or controlled by a common parent;

☐ Name and TIN of common parent:

Name _____.

TIN _____.

(m) *Restricted business operations in Sudan.* By submission of its offer, the offeror certifies that the offeror does not conduct any restricted business operations in Sudan.

(n) *Prohibition on Contracting with Inverted Domestic Corporations.*

(1) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-2(b) applies or the requirement is waived in accordance with the procedures at 9.108-4.

(2) *Representation.* The Offeror represents that—

- (i) It [] is, [] is not an inverted domestic corporation; and
- (ii) It [] is, [] is not a subsidiary of an inverted domestic corporation.

(o) *Prohibition on contracting with entities engaging in certain activities or transactions relating to Iran.*

(1) The offeror shall email questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(2) *Representation and certifications.* Unless a waiver is granted or an exception applies as provided in paragraph (o)(3) of this provision, by submission of its offer, the offeror—

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Iran Sanctions Act; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds the threshold at FAR 25.703–2(a)(2) with Iran’s Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 *et seq.*) (see OFAC’s Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx>).

(3) The representation and certification requirements of paragraph (o)(2) of this provision do not apply if—

(i) This solicitation includes a trade agreements certification (*e.g.*, 52.212–3(g) or a comparable agency provision); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products.

(p) *Ownership or Control of Offeror.* (Applies in all solicitations when there is a requirement to be registered in SAM or a requirement to have a unique entity identifier in the solicitation).

(1) The Offeror represents that it [] has or [] does not have an immediate owner. If the Offeror has more than one immediate owner (such as a joint venture), then the Offeror shall respond to paragraph (2) and if applicable, paragraph (3) of this provision for each participant in the joint venture.

(2) If the Offeror indicates “has” in paragraph (p)(1) of this provision, enter the following information:

Immediate owner CAGE code: ____.

Immediate owner legal name: ____.

(Do not use a "doing business as" name)

Is the immediate owner owned or controlled by another entity: ☐ Yes or ☐ No.

(3) If the Offeror indicates "yes" in paragraph (p)(2) of this provision, indicating that the immediate owner is owned or controlled by another entity, then enter the following information:

Highest-level owner CAGE code: ____.

Highest-level owner legal name: ____.

(Do not use a "doing business as" name)

(q) Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law.

(1) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, The Government will not enter into a contract with any corporation that—

(i) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(ii) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(2) The Offeror represents that—

(i) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(ii) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(r) Predecessor of Offeror. (Applies in all solicitations that include the provision at 52.204-16, Commercial and Government Entity Code Reporting.)

(1) The Offeror represents that it ☐ is or ☐ is not a successor to a predecessor that held a Federal contract or grant within the last three years.

(2) If the Offeror has indicated "is" in paragraph (r)(1) of this provision, enter the following information for all predecessors that held a Federal contract or grant within the last three years (if more than one predecessor, list in reverse chronological order):

Predecessor CAGE code: ____ (or mark "Unknown").

Predecessor legal name: ____.

(Do not use a "doing business as" name).

(s) [Reserved]

(t) *Public Disclosure of Greenhouse Gas Emissions and Reduction Goals.* Applies in all solicitations that require offerors to register in SAM (12.301(d)(1)).

(1) This representation shall be completed if the Offeror received \$7.5 million or more in contract awards in the prior Federal fiscal year. The representation is optional if the Offeror received less than \$7.5 million in Federal contract awards in the prior Federal fiscal year.

(2) Representation. [Offeror to check applicable block(s) in paragraph (t)(2)(i) and (ii)]. (i) The Offeror (itself or through its immediate owner or highest-level owner) [] does, [] does not publicly disclose greenhouse gas emissions, i.e., makes available on a publicly accessible Web site the results of a greenhouse gas inventory, performed in accordance with an accounting standard with publicly available and consistently applied criteria, such as the Greenhouse Gas Protocol Corporate Standard.

(ii) The Offeror (itself or through its immediate owner or highest-level owner) [] does, [] does not publicly disclose a quantitative greenhouse gas emissions reduction goal, i.e., make available on a publicly accessible Web site a target to reduce absolute emissions or emissions intensity by a specific quantity or percentage.

(iii) A publicly accessible Web site includes the Offeror's own Web site or a recognized, third-party greenhouse gas emissions reporting program.

(3) If the Offeror checked "does" in paragraphs (t)(2)(i) or (t)(2)(ii) of this provision, respectively, the Offeror shall provide the publicly accessible Web site(s) where greenhouse gas emissions and/or reduction goals are reported:_____.

(u)(1) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.

(2) The prohibition in paragraph (u)(1) of this provision does not contravene requirements applicable to Standard Form 312 (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

(3) Representation. By submission of its offer, the Offeror represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (e.g., agency Office of the Inspector General).

(v) *Covered Telecommunications Equipment or Services—Representation.* Section 889(a)(1)(A) and section 889(a)(1)(B) of [Public Law 115-232](#).

(1) The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(2) The Offeror represents that—

(i) It ☐ does, ☐ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(ii) After conducting a reasonable inquiry for purposes of this representation, that it ☐ does, ☐ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of Provision)

SECTION L - INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS

<u>FAR Number</u>	<u>Title</u>	<u>Date</u>
52.204-7	SYSTEM FOR AWARD MANAGEMENT	NOV 2024
52.204-16	COMMERCIAL AND GOVERNMENT ENTITY CODE REPORTING	AUG 2020

L.1 LC52.215-1 PROPOSAL SUBMISSION INSTRUCTIONS - BEST VALUE TRADE-OFF (JUL 2016)

L.1 Competition

This competition is being conducted in accordance with FAR 15 Contracting by Negotiation policies. This is a full and open competition using best-value, trade-off evaluation procedures. Please read below for more detailed information.

L2. Questions and Clarifications

Businesses shall submit their questions regarding this work to Jennifer Zwahlen, Contracting Officer, at jzwa@loc.gov and to the Contract Specialist, Colleen Daly, at cdaly@loc.gov. Questions are due no later than February 2, 2026, at noon eastern time. The Library will provide questions and answers to all potential offerors as an amendment to the solicitation, but offeror names will not be provided. The amendment will be posted to the same SAM.gov web page where the solicitation is located.

The Library reserves the right not to answer questions received after the question due date; however, it also reserves the right to answer questions received after this date at the Library's discretion. Late questions must be substantive, pertinent to the solicitation, and must not duplicate questions already answered in the Q&A responses document.

It is the Library's intention to provide an award without engaging in negotiations/clarifications if possible, so questions regarding all aspects are highly encouraged.

L.3 General Instructions to Offerors

All proposals shall be submitted electronically via email to both Contracting Officer (CO) Jennifer Zwahlen (jzwa@loc.gov) and Contract Specialist, Colleen Daly (cdaly@loc.gov). Proposals submitted through any means other than email will NOT be accepted. Offerors must comply with the submission instructions specified in this solicitation. The Library has the right, at its discretion, to determine an offer is ineligible for award if an Offeror does not comply materially with the submission instructions. At the Library's discretion, proposals received after the proposal response due date and time may not receive further consideration.

Offeror must not submit zipped files. The email containing the proposal must have the RFP number in the subject line (030ADV26R0010). The total maximum file size of all attached files cannot exceed 20MB due to restrictions on the

Library's email system. If needed, businesses may submit multiple emails and ensure they are clearly identified (for instance: email 1 of 5; email 2 of 5, etc.). The proposals must include the solicitation number, business name, mailing address, telephone number, and SAM UEI number. The proposal must provide the name of offeror's primary point of contact and their email address and phone number.

Proposal Format: Proposals must be submitted in either Microsoft Office or Adobe formats. Each page must be numbered and labeled with the name of the Offeror and solicitation number. The format for all documents must be 8.5 x 11 inch pages, single-spaced 1-inch margins, 12-point font in text. Proposals must be submitted as separate volumes.

All contents of offeror's proposals must remain valid through June 6, 2026.

L.4 Content of Proposals

Offerors proposals must contain the following four volumes inclusive of all subfactors.

L.4.1 Volume I: Technical Approach

Volume I, Subfactor I: Technical Approach and Capabilities

Page Limit: 30 pages

Offerors shall provide a narrative that provides a clear understanding of the goals and objectives of the Statement of Work (SOW) and how they shall perform the solicitation requirements. Offerors must identify the resources and methods necessary for successful performance and completion of the work in a manner that demonstrates that the offeror can perform the required services. Offerors may also refer to *Attachment J1 – Description of Tech Environment* for supporting information about this requirement. Offerors must also describe their approach to quality assurance, at scale, and explain how they will provide sustainable means of routing and tracking seed URLs designated for different crawlers (if implementing a multi-crawler approach).

Offerors that simply restate the details of the Statement of Work (SOW) may be found unresponsive and ineligible for award.

Volume I, Subfactor II: Sample Web Crawl

Page Limit: The sample web crawl is exempt from the Volume I page limit.

Offerors shall carefully review and follow instructions provided in *Attachment J2a* and *Attachment J2b* to perform a one-time sample web crawl. Offerors shall note that file transfers for the sample seed crawl must occur via the Library's secure file transfer protocol (SFTP) following the instructions in *Attachment J2a*. This technical test shall use *Attachment J2b*, the Library-provided seed list, which includes seeds of varying types and complexity (plus scopes). The offeror must provide results of the crawl to the Library in WARC format for analysis by Library staff. Results must be accompanied by a complete set of sample reports as outlined in the SOW (3.3.1.2.2) generated for the crawl, and a brief description of the tool(s)/software used to complete this

test. If the offeror proposes multiple, distinct web harvesting technologies, the technical test must be repeated for each technology (i.e. crawler) proposed for utilization in the Contractor's technical approach. Offerors are not required to propose multiple technologies.

L.4.2 Volume II: Corporate Experience and Capabilities

Volume II, Subfactor I: Corporate Experience

Page Limit: Limited to one page per project

Offerors shall provide a narrative that describes three projects, completed or ongoing, from the past five (5) years, of comparable complexity to this requirement. Projects must demonstrate successful experience with web harvesting services. For each project described, offerors must provide:

- The name of the agency or business.
- A reference for each agency or business with a valid phone number and email address.
- The approximate dollar value of the contract/project.
- The delivery schedule for each project described.
- A narrative description of the scope, deliverables, and reports provided to the client. The narrative must include offeror's experience with creating and providing flexible approaches to capture of content, including highly complex sites with multiple paths and many links from the primary seed URL.
- At least two examples of challenges experienced during contract performance and how the offeror solved the challenges and continued to perform and monitor the crawler(s) for success.

Volume II, Subfactor II: Key Personnel

Page Limit: Resumes are exempt from the Volume II page limit.

Offerors must provide resumes of all key personnel required by this solicitation (see Section C). The resumes must demonstrate the minimum requisite skills and experience described in the SOW. Resumes shall provide detail and meaningful information to evaluate the key personnel's knowledge, skills, and abilities and their prior experience. This experience must demonstrate the technical experience required to successfully perform work under this contract. See clause LC52.237-1 Key Personnel.

L.4.3 Volume III: Past Performance

Page Limit: The offeror must use *Attachment J3* to complete this volume. One attachment per reference is permitted.

Offeror shall provide *Attachment J3 – Past Performance Questionnaire* to offeror's references. Offeror shall provide the questionnaire to the references named above in L.4.2 for completion. Please ensure that the POC name, valid email, and phone number are provided. Completed questionnaires must be submitted, via email, from each past performance reference to the Contract Specialist (cdaly@loc.gov) and the Contracting Officer (jzwa@loc.gov), by the solicitation closing date and time which can be found on page one of this solicitation. Past performance questionnaires sent from

the offeror to the Contract Specialist and Contracting Officer shall not be acceptable. This requirement is for blind past performance information.

The Library is not responsible for correcting or clarifying information, nor is it responsible for seeking responses to unanswered evaluation questions.

L.4.4 Volume IV: Price

Page Limit: Offerors must use *Attachment J4 – Price Schedule* for this volume

Offerors shall provide a Firm Fixed Price (FFP) per one (1) terabyte for each ordering period in solicitation *Attachment J4 – Price Schedule*. Offerors may provide bulk ordering discounts based on the quantity of terabytes purchased per Task Order. If an offeror chooses to provide discounted pricing, they must do so in the additional columns provided in *Attachment J4*. Offerors may add more columns depending on the unit quantity ranges they wish to discount. Offerors may refer to *Attachment J8 – SAMPLE Task Order SOW* for an example of the estimated volume of work to be completed under a task order. *Attachment J8* is a sample only and does not guarantee or reflect the anticipated first Task Order nor does it require the offeror to complete any of the work described therein. *Attachment J8* is for reference purposes only in the event an offeror finds it germane to the development of their pricing proposal and structure.

Prices shall include all services required by the Statement of Work and include all the offeror's direct costs.

SF1449: Offer must provide a signed copy of the SF1449.

L.4.5 Amendments to the Solicitation

It is the offeror's responsibility to monitor SAM.gov for the issuance of amendments to the solicitation. The offeror must ensure that their proposal complies with all terms and conditions of the solicitation and any amendments issued.

(End of Provision)

L.2 LC52.233-2 PROTESTS TO THE LIBRARY OF CONGRESS (DEC 2013)

Offerors may submit a protest directly to the Contracting Officer or to the Government Accountability Office. Protests filed with the contracting officer will be decided promptly, and may be appealed to the Library's Senior Procurement Executive for purposes of conducting an independent review of the contracting officer's decision.

(End of Provision)

SECTION M - EVALUATION FACTORS FOR AWARD

M.1 LC52.215-2 EVALUATION - BEST VALUE TRADE-OFF (FEB 2020)

M.1 Competition Type

The Library will award the contract resulting from this solicitation to the responsible offeror that provides the best value to the Library. This competition is being conducted in accordance with FAR Part 12 utilizing 15 procedures.

This is a Best-Value-Trade-Off (BVTO) competition. The Library intends to evaluate proposals and award the contract without communications with offerors, except clarifications. Therefore, offeror's proposal shall contain offeror's best terms and offeror shall consider its proposal their best and final offer.

The Library reserves the right to conduct discussions and establish a competitive range if the Contracting Officer determines it is necessary. If the Contracting Officer determines the number of proposals that would otherwise be in the competitive range exceeds the number at which efficient competition can be conducted, the Contracting Officer may limit the number of proposals in the competitive range to the greatest number that will permit efficient competition among the highly rated proposals. Offerors shall not be compensated for proposal preparation costs even in a situation where the solicitation is canceled entirely. The Library reserves the right to not establish a competitive range and reserves the right to award without discussions.

M.2 Evaluation Methodology

Best value will be determined through the evaluation of the volumes outlined below. All evaluation factors are listed in descending order of importance with the technical subfactors being of equal weight to each other. Subfactors are grouped by theme or content into Volumes for the purpose of proposal documents consolidation but stand alone in their evaluation rating and significance. All nonprice factors, when combined, are significantly more or equally important to price. Each Technical subfactor shall be evaluated separately and assigned an individual adjectival rating. Past performance will be evaluated for level of risk and price will be evaluated for reasonableness.

Offerors are advised that the Library may evaluate proposals and award a contract without discussions; therefore, the offeror's initial proposal should contain the offeror's best terms and conditions. The Library also reserves the right to conduct discussions if the contracting officer determines them to be necessary.

M.3 Evaluation Factors for Award

Best value will be determined through a Best-Value Tradeoff (BVTO) approach based on the following evaluation factors:

- Volume I: Technical Approach
 - Subfactor I – Technical Approach and Capabilities

- Subfactor II – Sample Web Crawl
- Volume II: Corporate Experience and Capabilities
 - Subfactor I – Corporate Experience
 - Subfactor II – Key Personnel
- Volume III: Past Performance
- Volume IV: Price

M.3.1 Volume I: Technical Approach

Volume I, Subfactor I: Technical Approach and Capabilities

The Library will evaluate the offeror's technical approach and capabilities to assess the degree to which the offeror demonstrates an understanding of the work and feasibility of completing each of the requirements in Section C of this solicitation. The Library will evaluate the offeror's methodology and quality assurance approach to assess the degree to which the offeror can perform and oversee complex, preservation quality web crawls per the details of the Statement of Work (SOW). Offerors that simply restate the details of the SOW may be found unresponsive and ineligible for award.

Volume I, Subfactor II: Sample Web Crawl

The Library will evaluate the results of the sample crawl to determine the extent to which the offeror is capable of providing the services described in the SOW. Each web harvesting technology proposed will be evaluated for the degree to which it illustrates the offeror's understanding and compliance with the specifications of the SOW, *Attachment J2a*, and *Attachment J2b* as well as compatibility with the Library's digital environment as described in Section C and *Attachment J1*.

M.3.2 Volume II: Corporate Experience

Volume II, Subfactor I: Corporate Experience and Capabilities

The Library will evaluate the offeror's corporate experience and capabilities to assess the extent to which it demonstrates the offeror has the technical expertise and proven ability to provide the services required in this solicitation. The Library will also evaluate the challenges faced and overcome by the offeror in the course of previous work to assess the degree to which the offeror is capable of mitigating challenges to ensure quality and timely deliveries. The Library will evaluate the offeror's proposal for likelihood of successful performance as demonstrated by the offeror's submitted projects providing services or similar size, scope, and complexity.

Volume II, Subfactor II: Key Personnel

The Library will evaluate the offeror's Key Personnel resumes for the extent to which the offeror demonstrates that the key personnel have both recent and relevant experience, and the necessary minimum qualifications, to successfully fulfill this solicitation's requirements. Offerors that provide more experienced key personnel may be evaluated more favorably.

M.3.3 Volume III: Past Performance

The Library will evaluate the past-performance information submitted in accordance with Section L of the solicitation to assess the level of risk of the offeror's ability to successfully perform the contract. The Library will review the past-performance questionnaires to assess the likelihood and level of risk that the offeror can successfully perform the required work. In addition, the Library may use Contractor Performance Assessment Reporting System (CPARS) records to assess the likelihood that the offeror can successfully perform the required work. The Library reserves the right to contact and use the information provided by the references and any other sources of past performance information available (including the Library's own knowledge of previous performance). The offeror will be evaluated neither favorably nor unfavorably on past performance if no relevant past-performance information is provided by the offeror or obtained by the Library.

The Library is not responsible for correcting false information or tracking down references that are not submitted per the solicitation and Past Performance Questionnaire requirements. If it is difficult to determine with which offeror a reference is associated, the questionnaire may not be evaluated. Likewise, references may not be evaluated if their contents are erroneous or confusing. References with contents deemed erroneous or confusing will be considered "neutral" and not evaluated.

M.3.4 Volume IV: Price

The Library will evaluate the pricing provided in Attachment J4 – Price Schedule for fairness and reasonableness. Unit prices for all ordering years will be evaluated. If an offeror provides tiered pricing for bulk order discounts, it may be evaluated more favorably. The total evaluated price (TEP) will be established by taking the offeror's unit prices, multiplying them by the Library's estimated annual need, and combining each year's cost to determine the total estimated value of the contract. This estimate will be applied fairly across all proposals to develop the TEP and, at the Library's discretion, this estimate may be used to award the initial task order. Offeror's proposed prices must remain valid through 06/01/2026.

The Library reserves the right to request other-than-certified-cost-and-pricing data.

M.4 Award

The Library reserves the right to award to other than the lowest-priced offeror. The Library reserves the right to waive minor irregularities found in offers. Under no circumstances shall offeror's preparation, travel or any other costs be reimbursed because of this solicitation, including situations resulting in the full cancellation of this solicitation. A written notice of award or acceptance of an offer, emailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Library may accept an offer (or part of an offer), whether there are communications after its receipt, unless a written notice of withdrawal is received before award.

(End of Provision)

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